NEXTREPORTING

GENERAL SUBSCRIPTION TERMS AND CONDITIONS

Software as a Service (SaaS)

Version 1.0

1. INTRODUCTION

These General Subscription Terms and Conditions (the "**Terms**") govern the access to and use of the cloud-based software platform known as **NEXTREPORTING** (the "**Service**"), developed and operated by **ATEBIZ** (the "**Provider**").

NEXTREPORTING is a Software as a Service (SaaS) financial reporting and business intelligence platform designed to enable organisations to access, analyse, visualise and manage financial information through interactive dashboards, reports, key performance indicators, analytical tools and related functionalities. The Service is intended exclusively for business and professional users.

The Service is designed to obtain, process and display information originating from compatible third-party systems through authorised integrations, including, where applicable, the KONSOLIDATOR platform by means of application programming interfaces (APIs). NEXTREPORTING does not replace accounting software, enterprise resource planning systems or statutory reporting systems but provides an additional analytical layer intended to facilitate financial reporting and business decision-making.

NEXTREPORTING is a Software as a Service platform designed to generate financial dashboards, management reports, analytics and business intelligence based on financial and operational information made available through KONSOLIDATOR or other approved Third-Party Systems using authorised integration mechanisms, including APIs.

NEXTREPORTING does not originate, create, verify, reconcile, consolidate or independently validate the underlying financial information. The accuracy, completeness, consistency, timeliness and reliability of the reports, dashboards, calculations and visualisations generated by the Service depend upon the integrity, availability, quality, configuration and currency of the information supplied by KONSOLIDATOR and any other connected systems.

The Provider shall not be responsible for inaccuracies, omissions, inconsistencies or delays resulting from incorrect source data, unavailable integrations, API failures, configuration errors, synchronisation issues or modifications introduced into KONSOLIDATOR or any Third-Party System outside the Provider's reasonable control.

These Terms constitute a legally binding agreement between the Provider and the Customer identified in the applicable Order Form or other commercial document executed by the Parties.

By executing an Order Form, electronically accepting these Terms, accessing the Service or permitting Authorised Users to access the Service, the Customer acknowledges that it has read, understood and agreed to be bound by these Terms. Where the Service is supplied through an authorised reseller, distributor or white-label partner, these Terms shall apply except to the extent expressly modified by the applicable Order Form, Partner Schedule or White Label Schedule.

2. DEFINITIONS

Unless the context requires otherwise, the following capitalised terms shall have the meanings set out below.

"**Affiliate**" means any legal entity that directly or indirectly controls, is controlled by or is under common control with a Party, where "control" means ownership of more than fifty percent (50%) of the voting rights or equivalent power to direct management.

"**API**" means any application programming interface enabling the exchange of information between NEXTREPORTING and external systems.

"**Authorised User**" means an individual authorised by the Customer to access and use the Service in accordance with the applicable Subscription.

“Availability” means the operational accessibility of the Service as determined under the applicable Service Level Agreement.

"**Business Day**" means any day other than Saturday, Sunday or official public holiday in the country where the Provider has its registered office.

"**Confidential Information**" means any information disclosed by either Party that is identified as confidential or which reasonably should be understood to be confidential by its nature, including commercial information, business plans, software, documentation, algorithms, source code, technical architecture, pricing, security measures, trade secrets and Customer Data.

"**Customer**" means the legal entity identified in the applicable Order Form.

"**Customer Data**" means all data, documents, accounting information, financial records, reports, databases, files and other information uploaded, transmitted, stored, generated or otherwise processed through the Service on behalf of the Customer.

"**Dashboard**" means any visualisation, report, chart, KPI, analytical view, financial statement or graphical representation generated through the Service.

"**Documentation**" means the user manuals, technical documentation, knowledge base articles and other documentation made available by the Provider.

"**Effective Date**" means the date specified in the applicable Order Form or, if none is specified, the date on which the Subscription becomes effective.

"**Intellectual Property Rights**" means copyrights, neighbouring rights, database rights, patents, trademarks, trade names, domain names, trade secrets, know-how, software rights and all other intellectual and industrial property rights recognised under applicable law.

"**Konsolidator**" means the third-party Software-as-a-Service platform with which NEXTREPORTING may integrate through authorised APIs.

“Nextreporting” means the cloud-based financial reporting and analytics platform developed by the Provider which operates as an analytics layer built upon information received from KONSOLIDATOR and other authorised systems.

"**Order Form**" means any commercial proposal, quotation, subscription order, statement of work or other ordering document executed by the Parties.

"**Professional Services**" means implementation, onboarding, consultancy, configuration, training, data migration, customisation or any other professional services separately agreed between the Parties.

"**Provider**" means ATEBIZ or any Affiliate designated in the applicable Order Form.

"**Service**" means the NEXTREPORTING SaaS platform together with all functionalities, Documentation, updates and associated cloud services provided by the Provider.

“Source Data” means the financial, accounting, operational or other business information originating from KONSOLIDATOR or any authorised Third-Party System from which the Service generates reports, dashboards and analytics.

"**Subscription**" means the limited contractual right granted to the Customer to access and use the Service during the applicable Subscription Term.

"**Subscription Term**" means the period specified in the applicable Order Form.

3. SCOPE OF THE SUBSCRIPTION

Subject to the Customer's continuous compliance with these Terms and the payment of all applicable fees, the Provider grants the Customer a limited, revocable, non-exclusive, non-transferable and non-sublicensable right to access and use the Service solely for the Customer's own internal business purposes during the applicable Subscription Term.

The Subscription does not constitute a sale of software or any transfer of ownership rights over the Service or any component thereof. The Customer acquires only a contractual right to access and use the Service under the conditions set out herein. Unless expressly agreed otherwise, the Subscription includes cloud hosting, standard software maintenance, security updates, ordinary technical support and access to the functionalities described in the applicable Order Form.

Professional Services, bespoke developments, integrations, implementation projects, consultancy services, training sessions and any functionality not expressly included within the Subscription shall require a separate written agreement and may be subject to additional fees.

The Provider may continuously develop, improve and enhance the Service to reflect technological developments, regulatory changes, security requirements and customer feedback. Such improvements may include modifications to the user interface, analytical functionalities, reports, dashboards, workflows or integrations, provided that the overall functionality of the Service is not materially diminished.

4. NATURE OF THE SERVICE

NEXTREPORTING is a business intelligence and financial reporting platform designed to facilitate the analysis and visualisation of financial information.

The Customer expressly acknowledges that the Service is not intended to replace professional accounting systems, statutory consolidation software, enterprise resource planning systems, auditing tools, tax compliance software or professional financial advice.

The Service organises, processes and presents information received from the Customer and from authorised third-party systems.

NEXTREPORTING neither creates accounting records nor validates accounting transactions. It does not certify the completeness, legality or accuracy of any financial information and does not generate statutory financial statements unless expressly stated otherwise.

Reports, dashboards, forecasts, key performance indicators and other outputs generated by the Service constitute analytical tools intended to assist the Customer in its own internal decision-making processes.

The Customer remains exclusively responsible for reviewing, validating and approving any information generated by the Service before relying upon it for accounting, financial, legal, tax, regulatory, investment or commercial purposes.
Nothing contained within the Service shall constitute accounting advice, audit advice, tax advice, legal advice, investment advice or any other regulated professional service.

5. INTEGRATION WITH KONSOLIDATOR AND THIRD-PARTY SYSTEMS

NEXTREPORTING has been specifically designed to integrate with compatible third-party software applications through authorised APIs.

Where the Customer activates an integration with KONSOLIDATOR or any other supported platform, the Customer authorises the Provider to retrieve, process, organise and display the information made available through such integration solely for the purpose of providing the Service.

The Customer represents and warrants that it possesses all necessary rights, permissions and authorisations required to permit such data exchange.

The Provider shall not access any information beyond that authorised by the Customer or technically made available through the relevant integration.

The Customer acknowledges that the Service depends upon the continuous availability and correct functioning of the relevant third-party systems and their APIs.
Accordingly, the Provider does not warrant that integrations with third-party software will remain continuously available or operate without interruption.

The Provider shall not be liable for any interruption, degradation, delay, incompatibility or malfunction resulting from:

a) modifications to third-party APIs;
b) changes introduced by KONSOLIDATOR or any other third-party software provider;
c) suspension or discontinuation of external services;
d) corrupted, incomplete or inaccurate source data;
e) communication failures between external platforms; or
f) restrictions imposed by third-party providers.

Where an integration becomes unavailable due to circumstances beyond the Provider's reasonable control, the Provider shall use commercially reasonable efforts to restore compatibility within a reasonable period but shall not be liable for any resulting loss or interruption.

6. CUSTOMER ACCOUNTS AND AUTHORISED USERS

Access to the Service shall be limited to Authorised Users designated by the Customer.

Each Authorised User shall receive individual authentication credentials. User accounts are personal and may not be shared, transferred or simultaneously used by multiple individuals.

The Customer shall remain fully responsible for all activities carried out through its user accounts, irrespective of whether such activities were authorised by the Customer.

The Customer shall promptly notify the Provider of any suspected unauthorised access, credential compromise or security incident affecting its accounts.

The Provider may temporarily suspend individual user accounts where reasonably necessary to protect the security or integrity of the Service or where there are reasonable grounds to believe that these Terms have been breached.

The Provider shall not be responsible for any loss arising from the Customer's failure to maintain appropriate security measures in relation to user credentials or internal access management.

7. CUSTOMER RESPONSIBILITIES

The Customer shall use the Service in accordance with these Terms, the applicable Documentation and all applicable laws and regulations.
The Customer shall ensure that all Customer Data uploaded to or processed through the Service has been lawfully obtained and that the Provider is authorised to process such data for the purposes of providing the Service.

The Customer shall be solely responsible for the accuracy, completeness, integrity and legality of all Customer Data.

The Provider shall have no obligation to verify, validate or correct any Customer Data and shall be entitled to rely on its apparent accuracy.

The Customer shall ensure that its Authorised Users possess appropriate knowledge and authority to use the Service.

The Customer shall implement appropriate internal controls to verify any reports, dashboards or analytical outputs before they are used for statutory reporting, management reporting or commercial decision-making.

The Customer shall immediately notify the Provider if it becomes aware of any defect, security vulnerability, unauthorised access or malfunction affecting the Service.

The Customer shall cooperate reasonably with the Provider in investigating and resolving technical incidents.

8. ACCEPTABLE USE

The Customer shall not, and shall ensure that its Authorised Users do not:

a) use the Service for any unlawful, fraudulent or misleading purpose;
b) use the Service in any manner that could interfere with its normal operation or security;
c) attempt to gain unauthorised access to any system, infrastructure or data belonging to the Provider or any third party;
d) circumvent, disable or interfere with security mechanisms implemented within the Service;
e) reverse engineer, decompile, disassemble or otherwise attempt to discover the source code, underlying algorithms or software architecture of the Service except where expressly permitted by mandatory law;
f) copy, reproduce, modify, distribute or create derivative works from the Service except as expressly authorised under these Terms;
g) introduce malware, ransomware, malicious code, automated scripts or any technology intended to disrupt the operation of the Service;
h) use the Service to develop competing software products or services; or
i) permit any third party to access the Service except as expressly authorised under these Terms.

Any breach of this Clause shall constitute a material breach of the Agreement.

9. CUSTOMER DATA

As between the Parties, all Customer Data shall remain the exclusive property of the Customer.

Nothing contained in these Terms shall transfer ownership of Customer Data to the Provider.

The Customer grants the Provider a non-exclusive, worldwide licence to host, copy, transmit, process, store and otherwise use Customer Data solely to the extent necessary for providing, maintaining, securing, improving and supporting the Service.

The Provider shall not access Customer Data except where reasonably necessary to provide the Service, comply with applicable law, respond to Customer requests or investigate security incidents.

The Provider shall implement appropriate technical and organisational measures designed to protect Customer Data against accidental or unlawful destruction, loss, alteration, unauthorised disclosure or unauthorised access.

The processing of personal data shall be governed exclusively by the applicable Data Processing Agreement.

The Parties mutually acknowledge and agree that the personal data contained in this Agreement shall be processed for the purposes of managing their contractual relationship, formalising and administering the commitments arising therefrom, and complying with the respective legal obligations, contractual obligations and legitimate interests applicable to each Party, on the corresponding legal bases under applicable data protection legislation.

Such personal data shall be processed for the duration of the contractual relationship and, following its termination, for such period as may be required to comply with applicable legal or contractual retention obligations.

The personal data may be incorporated into the respective records maintained by each Party for the purposes of managing such relationship. The data subjects may, at any time, exercise the rights recognised under applicable data protection legislation, including the rights of access, rectification, erasure, data portability, restriction of processing and objection, by submitting a written request to the Party acting as controller of the relevant personal data at the address specified in this Agreement or at any other address subsequently notified for such purpose. They may also contact the relevant privacy officer or data protection contact of the respective Party using the same contact details.

Nothing in this clause shall prejudice the right of any data subject to lodge a complaint with the competent supervisory authority or to seek any other remedy available under applicable data protection legislation.

10. DATA RETENTION AND EXPORT

Throughout the Subscription Term, the Customer may export its Customer Data using the export functionalities made available through the Service or otherwise agreed between the Parties.

Following termination or expiration of the Subscription, the Customer shall remain responsible for exporting any Customer Data it wishes to retain.

Unless otherwise agreed in writing, the Provider shall retain Customer Data for ninety (90) days following termination solely for disaster recovery and Customer retrieval purposes.

Following expiry of the retention period, the Provider shall permanently delete or irreversibly anonymise the Customer Data unless a longer retention period is required by applicable law.

Nothing in this Clause shall require the Provider to retain backup media beyond its ordinary backup retention policies.

11. DASHBOARDS, REPORTS AND ANALYTICAL OUTPUTS

NEXTREPORTING generates Dashboards, reports, graphical visualisations, key performance indicators, analytical calculations and other outputs based on Customer Data and information obtained from authorised integrations.
Such outputs are generated automatically using configurable parameters, business rules and algorithms selected by the Customer or configured as part of the Service.
The Customer acknowledges that any Dashboard or report represents only the information available to the Service at the relevant time and is therefore dependent upon the quality, completeness, integrity and availability of the underlying source data.

The Provider does not warrant that any Dashboard or analytical output will always reflect the Customer's accounting records, statutory reports or regulatory filings.
The Customer shall independently review all outputs generated by the Service before relying upon them.

The Provider accepts no responsibility for management, investment, financing, tax, accounting or commercial decisions taken by the Customer on the basis of reports or analytical outputs generated through the Service.

12. PROFESSIONAL SERVICES

The Provider may supply Professional Services upon written request from the Customer.

Professional Services may include implementation, onboarding, configuration, integration, consultancy, training, migration assistance, bespoke developments or other agreed services.

Professional Services shall be governed by these Terms together with the applicable Statement of Work or Order Form.

Unless expressly agreed otherwise, Professional Services shall be performed on a reasonable skill and care basis.

The Provider does not warrant that Professional Services will achieve any specific commercial, financial or operational outcome.

Any recommendations made during consultancy engagements shall constitute professional opinions based upon the information available at the relevant time and shall not replace the Customer's own professional judgement.

13. SUPPORT SERVICES

During the Subscription Term, the Provider shall provide technical support in accordance with the applicable Service Level Agreement.

Support shall include reasonable assistance regarding the operation of the Service, investigation of incidents and correction of reproducible software defects.

Support does not include consultancy services, business process redesign, accounting advice, financial modelling, bespoke software development or user training unless expressly agreed.

The Provider may require the Customer to provide sufficient information to reproduce reported incidents before commencing investigation.

The Customer shall designate appropriate contact persons for technical communications.

14. SOFTWARE UPDATES

The Provider continuously develops and improves the Service.

Accordingly, the Customer acknowledges that the functionality, appearance, user interface and technical architecture of the Service may evolve during the Subscription Term.

The Provider may deploy maintenance releases, security patches, performance improvements and functional enhancements without prior notice where such changes do not materially reduce the core functionality of the Service.

Where a proposed modification would materially affect the Customer's use of the Service, the Provider shall provide reasonable prior notice whenever practicable.

The Customer acknowledges that continuous development forms an inherent characteristic of cloud-based software services.

15. INFORMATION SECURITY

The Provider shall maintain an information security programme designed to protect the confidentiality, integrity, availability and resilience of the Service.

Such programme shall include administrative, technical and organisational safeguards appropriate to the nature of the Service and the risks associated with the processing activities performed.

Without limiting the generality of the foregoing, the Provider shall maintain measures relating to access control, authentication, encryption, vulnerability management, secure software development, logging, monitoring, backup, disaster recovery and incident management.

The Provider may modify its security measures from time to time provided that the overall level of protection is not materially reduced.

Detailed security commitments shall be described in the Information Security Policy and Security Annex forming part of the contractual documentation.

16. SERVICE AVAILABILITY

The Provider shall use commercially reasonable efforts to make the Service continuously available.

Target service availability, maintenance windows, planned downtime, incident priorities and response commitments shall be governed exclusively by the applicable Service Level Agreement.

The Service may become temporarily unavailable due to scheduled maintenance, emergency security measures, infrastructure upgrades or circumstances beyond the Provider's reasonable control.

Temporary interruptions shall not constitute a breach of these Terms provided that the Provider acts with reasonable diligence to restore normal operation.

The Provider does not warrant uninterrupted or error-free operation of the Service.

17. INTELLECTUAL PROPERTY RIGHTS

The Service, including its software, source code, object code, algorithms, databases, architecture, application programming interfaces, user interfaces, dashboards, templates, calculation models, workflows, documentation, graphical

elements, designs, reports, methodologies, know-how and all related materials, together with all Intellectual Property Rights therein, are and shall remain the exclusive property of the Provider and its licensors.

No provision of these Terms shall operate to assign or transfer any Intellectual Property Rights to the Customer except for the limited right to access and use the Service expressly granted herein.

The Customer shall not acquire any ownership rights in the Service by virtue of its use, payment of Subscription Fees or receipt of Professional Services.

All improvements, modifications, enhancements, updates, upgrades, new releases, additional modules and derivative developments of the Service shall automatically belong to the Provider irrespective of whether they have been developed following Customer suggestions or requests.

Nothing in these Terms shall prevent the Provider from developing, licensing or commercialising functionalities, software or services similar to those developed for or requested by the Customer, provided that no Confidential Information or Customer Data is disclosed or misused.

18. CUSTOMER DATA, DERIVED DATA AND ANALYTICS

As between the Parties, the Customer shall retain all right, title and interest in and to the Customer Data.

The Provider claims no ownership over Customer Data.

The Customer grants the Provider a limited licence to process Customer Data solely for the purpose of providing, securing, maintaining, supporting and improving the Service in accordance with these Terms and the applicable Data Processing Agreement.

For the avoidance of doubt, analytical models, dashboards, visualisations, data structures, metadata, system logs, technical telemetry, usage metrics, anonymised performance indicators, aggregated statistical information and other information generated by or relating to the operation of the Service shall not constitute Customer Data.

The Provider may generate anonymised and aggregated datasets derived from the use of the Service for purposes including statistical analysis, service improvement, benchmarking, capacity planning, product development, cybersecurity, fraud prevention and business analytics, provided that such information cannot reasonably identify the Customer, its Affiliates or any identifiable individual.

The Provider shall not commercialise Customer-specific financial information nor disclose Customer Confidential Information through any aggregated datasets. Nothing contained in this Clause authorises the Provider to process personal data for purposes incompatible with applicable data protection legislation.

19. FEEDBACK

The Customer may from time to time provide comments, suggestions, recommendations, ideas or proposals regarding the Service.

Unless otherwise expressly agreed in writing, the Customer grants the Provider a perpetual, worldwide, irrevocable, royalty-free and fully transferable right to use, reproduce, modify, implement and commercialise such feedback without restriction and without any obligation to compensate the Customer.

The Provider shall have no obligation to implement any suggestion or recommendation received from the Customer.

20. CONFIDENTIALITY

Each Party undertakes to keep confidential all Confidential Information received from the other Party.

Confidential Information shall be used exclusively for the performance of these Terms and shall not be disclosed to any third party except to employees, Affiliates, professional advisers, auditors or subcontractors who have a legitimate need to know such information and who are bound by confidentiality obligations no less protective than those contained herein.

The receiving Party shall protect Confidential Information using at least the same degree of care that it applies to its own confidential information of similar importance and in any event no less than reasonable commercial care.

The obligations contained in this Clause shall not apply to information which:

a) is or becomes publicly available without breach of these Terms;
b) was lawfully known by the receiving Party before disclosure;
c) is lawfully obtained from an independent third party;
d) is independently developed without use of the Confidential Information; or
e) must be disclosed pursuant to applicable law, judicial order or binding regulatory requirement, provided that, where legally permitted, the receiving Party gives prior notice to the disclosing Party.

The confidentiality obligations shall remain in force for five (5) years following termination of the Agreement, except with respect to trade secrets, which shall remain protected for so long as they retain their confidential character.

21. SUBSCRIPTION FEES AND PAYMENT

The Customer shall pay the Subscription Fees specified in the applicable Order Form.

Unless otherwise agreed, Subscription Fees shall be invoiced annually in advance. Professional Services shall be invoiced in accordance with the applicable Statement of Work or Order Form.

All fees are exclusive of value added tax, sales tax, withholding taxes and any other applicable governmental charges.

The Customer shall be responsible for all taxes arising from the Subscription except taxes imposed upon the Provider's net income.

Invoices shall be payable within thirty (30) days from the invoice date unless otherwise agreed.

Late payments shall accrue interest at the maximum rate permitted by applicable law.

The Provider reserves the right to suspend access to the Service where undisputed invoices remain unpaid after reasonable written notice.

Suspension shall not relieve the Customer from its payment obligations.

22. PRICE ADJUSTMENTS

The Provider may adjust Subscription Fees upon renewal of the Subscription Term. Unless otherwise agreed in the applicable Order Form, annual adjustments shall not exceed the higher of:

a) five percent (5%); or
b) the percentage increase in the applicable Consumer Price Index or other equivalent inflation index published by the competent national authority.

The foregoing limitation shall not apply where additional modules, users, storage capacity, Professional Services or other services are added to the Subscription.

23. WARRANTIES

The Provider warrants that the Service shall be provided with reasonable professional skill and care consistent with generally accepted industry practice for comparable Software-as-a-Service offerings.

The Provider further warrants that it possesses the necessary rights to provide the Service under these Terms.

Except as expressly stated herein, the Service is provided on an "as available" basis. The Provider does not warrant that the Service will operate uninterrupted, error-free or without minor defects.

The Provider does not warrant that the Service will satisfy every business requirement of the Customer or that the analytical outputs generated through the Service will be suitable for every intended purpose.

The Customer acknowledges that software, particularly cloud-based software integrating with third-party systems, cannot reasonably be expected to operate without occasional interruptions or defects.

24. DISCLAIMER OF PROFESSIONAL ADVICE

NEXTREPORTING is a technology platform.

The Provider does not provide accounting, audit, legal, tax, regulatory, valuation, investment or financial advisory services through the Service.

Reports, dashboards, forecasts, ratios, calculations, key performance indicators and analytical outputs generated by the Service are informational tools only.

The Customer shall obtain independent professional advice whenever required by applicable law or prudent business practice.

The Provider shall not be responsible for any business, financial, investment, accounting or tax decisions adopted by the Customer on the basis of information generated through the Service.

The Customer remains solely responsible for all statutory filings, financial statements, tax returns, regulatory submissions and corporate reporting obligations.

25. CUSTOMER WARRANTIES

The Customer represents and warrants that:

a) it has full authority to enter into these Terms;

b) its execution of these Terms does not violate any contractual or legal obligation;
c) it possesses all necessary rights to permit the processing of Customer Data;
d) all Customer Data has been lawfully obtained;
e) its use of the Service complies with applicable laws;
f) its Authorised Users shall comply with these Terms; and
g) it shall not use the Service in connection with unlawful activities, sanctions violations, money laundering, terrorist financing or fraudulent conduct.

The Customer shall indemnify the Provider against any losses arising from the breach of this Clause.

26. LIMITATION OF LIABILITY

Each Party shall be liable for losses and damages arising from its breach of these Terms in accordance with the applicable law, subject always to the limitations set out herein.

The Provider shall be responsible solely for losses directly resulting from its own breach of these Terms.

To the fullest extent permitted by applicable law, neither Party shall be liable to the other for any indirect, incidental, special, punitive or consequential damages, irrespective of the legal basis of the claim.

Without limitation, neither Party shall be liable for any loss of profit, anticipated savings, goodwill, business opportunity, contracts, customers, revenue, production, reputation, financing opportunities, or for any loss arising from business interruption, corruption of data, reconstruction of data, loss of use, loss of management time or claims brought by third parties, except where such claims arise from an indemnity expressly assumed under these Terms.

The Provider shall not be liable for any inaccuracy, omission, inconsistency or incompleteness contained in Customer Data or in any information received from KONSOLIDATOR or any other third-party platform.

The Customer acknowledges that the Service relies upon information supplied by external systems over which the Provider has no operational control.
Accordingly, the Provider shall have no liability for any loss resulting directly or indirectly from inaccurate, delayed, incomplete or unavailable information originating from third-party systems.

Except in the cases expressly excluded below, the aggregate liability of the Provider arising out of or in connection with these Terms, whether in contract, tort (including negligence), breach of statutory duty or otherwise, shall not exceed an amount

equal to the Subscription Fees actually paid by the Customer during the twelve (12) months immediately preceding the event giving rise to the relevant claim.

Where the claim arises during the first twelve (12) months of the Subscription, the liability cap shall be calculated by reference to the annual Subscription Fees agreed in the applicable Order Form.

Nothing contained in these Terms shall exclude or limit liability for:

a) fraud or fraudulent misrepresentation;
b) wilful misconduct;
c) gross negligence, where such limitation is prohibited by applicable law;
d) death or personal injury caused by negligence where liability cannot lawfully be excluded;
e) infringement of Intellectual Property Rights giving rise to the indemnity under Clause 27; or
f) any liability which cannot legally be excluded or limited.

The Parties acknowledge that the Subscription Fees have been determined taking into account the allocation of risks established under these Terms and that the limitations contained herein constitute an essential basis of the commercial bargain.

27. INTELLECTUAL PROPERTY INDEMNITY

The Provider shall defend, indemnify and hold harmless the Customer against any final judgment or settlement arising from a third-party claim alleging that the authorised use of the Service infringes any patent, copyright or registered trademark, provided that:

a) the Customer promptly notifies the Provider in writing of the claim;
b) the Provider is granted sole control over the defence and settlement of the claim; and
c) the Customer provides reasonable cooperation.
   If the Service becomes, or in the Provider's reasonable opinion is likely to become, the subject of an infringement claim, the Provider may, at its own option:
   i) procure the Customer's continued right to use the Service;
   ii) modify the Service so that it becomes non-infringing without materially reducing its functionality;
   iii) replace the affected functionality with substantially equivalent functionality; or
   iv) terminate the affected Subscription and refund any prepaid fees corresponding to the unused portion of the Subscription Term.

The foregoing constitutes the Customer's exclusive remedy in relation to any alleged infringement of Intellectual Property Rights by the Service.

28. SUSPENSION

The Provider may suspend access to all or part of the Service without liability where reasonably necessary to:

a) protect the security, integrity or availability of the Service;
b) prevent actual or suspected cyberattacks or security incidents;
c) comply with applicable law or a binding order of a competent authority;
d) prevent material damage to the Service or other customers;
e) investigate suspected fraud or unlawful activities; or
f) address any material breach of these Terms.

Where reasonably practicable, the Provider shall provide prior notice of the suspension.

The Provider shall restore access as soon as the relevant circumstances have ceased to exist.

29. TERM AND TERMINATION

These Terms shall enter into force on the Effective Date and shall remain effective for the applicable Subscription Term.

Unless otherwise specified in the applicable Order Form, the Subscription shall automatically renew for successive periods of twelve (12) months unless either Party provides written notice of non-renewal at least ninety (90) days before expiry of the then current Subscription Term.

Either Party may terminate these Terms immediately by written notice if the other Party commits a material breach which is incapable of remedy or, where capable of remedy, remains unremedied thirty (30) days after receiving written notice requiring its remedy.

The Provider may terminate the Subscription immediately where the Customer repeatedly breaches these Terms, the Customer intentionally compromises the security of the Service, the Customer becomes insolvent, enters liquidation or ceases trading or continued provision of the Service becomes unlawful.

Termination shall be without prejudice to any rights accrued prior to termination.

30. EFFECT OF TERMINATION

Upon termination or expiry of the Subscription all rights granted to the Customer shall immediately cease, the Customer shall discontinue all use of the Service, the Provider shall disable access credentials within a reasonable period and the Customer shall remain liable for all outstanding fees accrued prior to termination.

Subject to Clause 10, the Customer may retrieve its Customer Data during the applicable retention period.

Termination shall not affect any provision intended by its nature to survive termination, including those relating to confidentiality, intellectual property, liability, indemnities, dispute resolution and governing law.

31. COMPLIANCE

Each Party shall comply with all laws and regulations applicable to its activities under these Terms.

Without limitation, each Party shall comply with legislation relating to anti-bribery and anti-corruption, international sanctions, export controls, anti-money laundering, data protection, cybersecurity or competition law.

The Customer shall not use the Service in any jurisdiction or for any activity prohibited under applicable sanctions or export control legislation.

The Provider may suspend or terminate the Service where continued performance would expose it to sanctions or legal prohibitions.

32. FORCE MAJEURE

Neither Party shall be liable for any delay or failure in performing its obligations where such delay or failure results from events beyond its reasonable control, including natural disasters, war, terrorism, labour disputes, epidemics, governmental actions, widespread internet failures, failures of telecommunications providers, cloud infrastructure failures, cyberattacks of exceptional severity or failures affecting third-party infrastructure providers.

The affected Party shall promptly notify the other Party and shall use commercially reasonable efforts to mitigate the effects of the relevant event.

Where the Force Majeure Event continues for more than ninety (90) consecutive days, either Party may terminate the affected Subscription upon written notice.

33. ASSIGNMENT

Neither Party may assign or transfer these Terms without the prior written consent of the other Party, such consent not to be unreasonably withheld.

Notwithstanding the foregoing, either Party may assign these Terms without consent to: an Affiliate; a successor resulting from merger, reorganisation or corporate restructuring; a purchaser of substantially all of its business or assets relating to the Service.

Any assignment shall not relieve the assigning Party from obligations accrued prior to the effective date of the assignment.

34. NOTICES

All notices under these Terms shall be made in writing and delivered by electronic mail or by any other communication method agreed between the Parties.

Notices shall be deemed received on the Business Day following successful transmission unless evidence demonstrates otherwise.

Operational communications relating to technical support shall not constitute formal contractual notices unless expressly identified as such.

35. GENERAL PROVISIONS

These Terms, together with the applicable Order Form, the Service Level Agreement, the Data Processing Agreement and any schedules expressly incorporated by reference, constitute the entire agreement between the Parties concerning the Service.

In the event of inconsistency, the order of precedence shall be:

1. the Order Form;
2. any negotiated Special Conditions;
3. these General Subscription Terms;
4. the Service Level Agreement;
5. the Data Processing Agreement;
6. the remaining schedules and policies.

If any provision is held invalid or unenforceable, the remaining provisions shall remain in full force and effect.

No waiver of any breach shall constitute a waiver of any subsequent breach.

No amendment shall be effective unless made in writing or accepted through the contractual amendment procedures established by the Provider.

Nothing contained in these Terms shall create any partnership, joint venture, agency or employment relationship between the Parties.

36. GOVERNING LAW AND DISPUTE RESOLUTION

These Terms and any dispute, claim or non-contractual obligation arising out of or in connection with them, the Services or any related Order Form shall be governed by and construed in accordance with the laws of Spain, excluding its conflict of laws rules.

The Parties shall endeavour, in good faith, to resolve amicably any disagreement, dispute or claim arising out of or in connection with these Terms or the Services before commencing judicial proceedings.

To that end, either Party may notify the other Party in writing of the existence of a dispute, setting out its nature and the relief sought. The Parties shall use all reasonable efforts to resolve the dispute through negotiations conducted by representatives having sufficient authority to settle the matter.

If the dispute has not been resolved within thirty (30) days following receipt of the written notice, or within such longer period as the Parties may agree in writing, either Party may commence judicial proceedings.

To the fullest extent permitted by applicable law, the Parties expressly submit to the exclusive jurisdiction of the Courts of Valencia (Spain) and irrevocably waive any other jurisdiction that may otherwise correspond to them.